



CHAPTER 46.

An Act to make fresh provision with respect to the functions of the Minister of Labour and National Service relating to employment and training for employment; to provide for the establishment of a comprehensive youth employment service; to consolidate with amendments certain enactments relating to the matters aforesaid; and for purposes connected therewith. [13th July 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

FUNCTIONS OF MINISTER AS TO EMPLOYMENT SERVICES.

1.—(1) Subject to the provisions of this Act, it shall be the duty of the Minister of Labour and National Service (in this Act referred to as "the Minister") to provide such facilities and services as he considers expedient for the purpose of assisting persons to select, fit themselves for, obtain and retain employment suitable to their age and capacity, of assisting employers to obtain suitable employees, and generally for the purpose of promoting employment in accordance with the requirements of the community.

(2) For the purpose of advising and assisting him in the performance of his functions under this Act, the Minister may appoint such advisory committees as he thinks fit, and any such committee may be appointed either in respect of the whole of Great Britain or in respect of any area therein.

PART I.
—cont.

Employment
exchanges
and
employment
services.

(3) The Minister may make regulations with respect to the constitution and functions of any such advisory committee as aforesaid.

2.—(1) The Minister may establish and maintain, in such places as he thinks fit, employment exchanges, that is to say offices or places for the collection and furnishing of information, either by the keeping of registers or otherwise, respecting persons who seek to engage employees and persons who seek employment.

(2) Without prejudice to the provisions of the last foregoing subsection, the Minister may make such arrangements as he considers expedient, whether by means of employment exchanges or otherwise, for the collection and furnishing of information, and the provision of advice, guidance or other services for persons of any class (whether employed or not) for any of the purposes mentioned in section one of this Act.

(3) Subject to the approval of the Treasury, the Minister may defray or contribute towards expenditure incurred by any local authority under any enactment other than this Act in the provision of any such services as are mentioned in the last foregoing subsection, and may make such contributions as he may, with the consent of the Treasury, determine towards the funds of any voluntary association having among its objects the provision of any such services.

(4) The Minister may make regulations with respect to the management of employment exchanges provided by him under this section, and otherwise with respect to the exercise of his functions thereunder.

(5) No person shall be disqualified or otherwise prejudiced in respect of facilities provided at any employment exchange as aforesaid on account of his refusal to accept employment found for him through such an exchange if the ground of his refusal is that a trade dispute which affects his trade exists, or that the wages offered are lower than those current in the trade in the district where the employment is found.

(6) Subject to the approval of the Treasury, the Minister may, in such cases and subject to such conditions as he thinks fit, make payments by way of grant or loan to persons travelling to or attending at any employment exchange or other place for the purpose of availing themselves of services provided under this section, and may pay to medical practitioners, in respect of the examination of persons availing themselves of such services, such fees as he may determine.

(7) If any person, for the purpose of obtaining employment or procuring employees, knowingly makes any false statement or false representation to an officer of any employment exchange

provided by the Minister under this section, or to any person acting for or for the purposes of any such exchange, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding ten pounds.

(8) The Minister shall, so far as practicable, make arrangements with employers for the notification by them to employment exchanges of situations in their employment which are or are about to become vacant.

3.—(1) The Minister may provide such training courses for persons, whether employed or not, who are above the upper limit of the compulsory school age as he thinks necessary or expedient for any of the purposes mentioned in section one of this Act.

(2) For the purposes aforesaid, the Minister may, in such cases and subject to such conditions as he may with the approval of the Treasury determine, defray or contribute towards the cost of training courses provided by any other authority or person for any such persons as are mentioned in the last foregoing subsection. Provisions as to training for employment.

(3) References in this section to the provision of a training course shall be construed as including references—

- (a) to the making of payments to persons who attend at any such course, in respect of their maintenance or in respect of their travelling expenses ;
- (b) to the provision of residential accommodation, board and facilities for recreation and welfare for such persons ;
- (c) to the provision of any other facilities or services incidental to the purposes of the course.

(4) Without prejudice to the foregoing provisions of this section, where, in pursuance of arrangements made with the Minister, provision is made by an employer for the training of persons in his employment, the Minister may, with the approval of the Treasury, make any payment or provide any facility or service to or for the benefit of those persons which he could make or provide if they were attending at a training course provided by him under this section.

(5) Nothing in this section shall be construed as authorising the Minister to defray or contribute towards the cost of any course of instruction provided by a local education authority under section seventy-six of the Unemployment Insurance Act, 25 & 26 Geo. 5. 1935, or to make any payment or provide any facility or service to or for the benefit of persons attending at such a course. c. 8.

(6) Subject as hereinafter provided the Minister of National Insurance may, with the consent of the Treasury, authorise the payment out of the National Insurance Fund of contributions

PART I.
—*cont.*

9 & 10 Geo. 6. 6.
c. 67. towards expenses incurred by the Minister under this section in respect of persons entitled to unemployment benefit under the National Insurance Act, 1946, and persons who would be so entitled but for regulations made under that Act :

Provided that contributions under this subsection shall not exceed half a million pounds in any year.

Schemes for
promoting
regularity of
employment.

4.—(1) Where any scheme for promoting greater regularity of employment in any industry is approved by the Minister on the joint application of an organisation representing employers and an organisation representing workmen in that industry, the Minister may, in accordance with arrangements made with the consent of the Treasury, assist the administration of the scheme by attaching officers of the Ministry of Labour and National Service to help in the administration thereof, and by such other means as he thinks fit.

(2) The Minister may, in accordance with such arrangements as aforesaid, issue on behalf of employers to persons to whom any such scheme applies any sums payable to those persons whether by way of wages or otherwise :

Provided that any arrangements making provision for the issue of any such sums shall also make provision for paying to the Minister any sums so issued by him and any expenses incurred by him which are attributable to the scheme.

(3) If an organisation representing employers and an organisation representing workmen in any industry make to the Minister a joint representation as to any difficulty in the operation of any scheme for promoting greater regularity of employment in the industry, or in making any further scheme for that purpose for the industry, the Minister may appoint one or more persons to hold an inquiry into the circumstances giving rise to the difficulty and to make a report to him with respect thereto.

(4) The fee to be paid by the Minister to any person holding such an inquiry as aforesaid shall be such as the Minister may with the consent of the Treasury direct.

Payments
towards cost
of removal
and
resettlement
of workers.

5.—(1) Subject to the approval of the Treasury, the Minister may, for the purposes of his functions under section one of this Act, make provision by way of grant or loan or otherwise—

- (a) for facilitating the removal of any persons, with or without their dependants, to or from any place in Great Britain for the purpose of obtaining employment ;
- (b) for the maintenance and welfare of persons so removed in the course of their removal or pending their resettlement, and, in the case of persons removed to any place in Great Britain, for their resettlement ;

PART I.
—cont.

- (c) where any persons removed as aforesaid for the purpose of obtaining employment fail to obtain employment, or employment obtained by persons so removed comes to an end, for facilitating the further removal of those persons, with or without their dependants, to any place whether in Great Britain or elsewhere.

(2) Where any payment by way of loan has been made by the Minister under this section to or in respect of any person, being a person satisfying the contribution conditions for unemployment benefit under the National Insurance Act, 1946, on account of expenses of travelling to any place for the purpose of obtaining employment, the Minister of National Insurance may, whether or not that person obtains employment at that place, repay out of the National Insurance Fund such part of the advance as may be prescribed by regulations made by that Minister with the consent of the Treasury; and except as provided by the following provisions of this section, any sum so repaid out of the National Insurance Fund shall not be recoverable from the person to whom the loan was made.

(3) If, in the event of employment being found for a person to or in respect of whom any such payment as is mentioned in the last foregoing subsection has been made, that person either fails without reasonable excuse to enter on that employment, or, within seven days of entering on it, leaves that employment without reasonable excuse, the sum repaid under the last foregoing subsection out of the National Insurance Fund may be recovered from him or deducted from any unemployment benefit, sickness benefit or retirement pension under the National Insurance Act, 1946, which may thereafter become payable to him.

(4) Any sums recoverable under the last foregoing subsection may, without prejudice to any other remedy, be recovered by the Minister of National Insurance summarily as a civil debt, and any sums recovered under that subsection shall be paid into the National Insurance Fund.

6.. The powers conferred on the Minister by this Part of this Act shall be additional to and not in substitution for any powers exercisable by the Minister or by any other authority under any other enactment. Saving for
existing
powers.

PART II.

THE YOUTH EMPLOYMENT SERVICE.

7.—(1) For the purpose of facilitating the establishment of a comprehensive youth employment service, the Minister may make arrangements with the Minister of Education and the Secretary of State for the performance of any of his functions under this Act in relation to persons to whom this Part of this Act applies through an executive body, to be known as the Central Youth Employment Executive, consisting of such persons, being Central
Youth
Employment
Executive.

PART II.
—cont.

officers of the Minister, the Minister of Education or the Secretary of State, as may be appointed in accordance with the arrangements.

(2) The persons to whom this Part of this Act applies are persons under the age of eighteen years and persons over that age who are for the time being attending school.

National
Youth
Employment
Council.

8.—(1) Without prejudice to the powers conferred on the Minister by this Act to appoint advisory committees, there shall be constituted, in accordance with the provisions of Part I of the First Schedule to this Act, a council, to be known as the National Youth Employment Council, and Advisory Committees on Youth Employment for Scotland and Wales respectively.

(2) It shall be the duty of the National Youth Employment Council (in this Act referred to as "the Council") to advise the Minister as to the performance of his functions and the functions of local education authorities under this Act in relation to persons to whom this Part of this Act applies, and for that purpose to make to him such reports as the Minister may require and such representations as they consider expedient: and it shall be the duty of the said Advisory Committees to advise the Council as to the matters aforesaid so far as they relate to Scotland and Wales respectively, and for that purpose to make to the Council such reports as the Council may require and such representations as they consider expedient.

(3) The supplementary provisions contained in Part II of the First Schedule to this Act shall have effect in relation to the Council and in relation to the Advisory Committees constituted under this section.

Youth
Employment
Committees.

9.—(1) Regulations made by the Minister under section one of this Act shall provide for the constitution, for such areas as the Minister may determine, of advisory committees, to be known as Youth Employment Committees, for the purpose of advising the Minister as to the performance in those areas of his functions under this Act in relation to persons to whom this Part of this Act applies and of performing in relation to such persons in those areas such other duties connected with the Minister's said functions as may be specified in the regulations:

Provided that no such committee shall be appointed for any area in respect of which a scheme approved by the Minister under the next following section is for the time being in force.

(2) The chairman and members of any such committee shall be appointed by the Minister, and shall include persons possessing experience and knowledge of education, employment and other conditions affecting the welfare of persons to whom this Part of this Act applies.

10.—(1) Subject to the provisions of this section, any local education authority may be authorised by means of a scheme approved by the Minister under this section to undertake, in respect of the whole area of that authority, any such functions as are conferred on the Minister by section two of this Act in relation to persons to whom this Part of this Act applies, being persons who are for the time being attending school or residing or employed in any part of that area, or who apply in that area for advice as to employment whether in that area or elsewhere.

(2) Any scheme approved by the Minister under this section—

(a) shall contain such provisions as appear to the Minister to be expedient for requiring the local education authority to consult and co-operate with the local education authority for any other area for which a scheme under this section is in force or, where no such scheme is in force, with the Minister ;

(b) shall provide for the exercise by a committee of the local education authority of such of the functions of that authority under the scheme as may be prescribed by the scheme ; and

(c) shall provide for the appointment by the said committee of one or more sub-committees, to be known as Youth Employment Committees, constituted in such manner as may be prescribed by the scheme, and for the performance by any such sub-committee of such advisory functions and such other duties connected with the functions of the local education authority under the scheme as may be so prescribed.

(3) Where a scheme under this section is in force, the Minister shall from time to time pay to the local education authority in respect of their administrative expenses under the scheme such sums as may be determined in accordance with regulations made by the Minister with the consent of the Treasury.

(4) Subject to the provisions of the next following subsection, the Minister may approve any scheme submitted to him for his approval under this section either without modification or subject to such modifications as he considers expedient after consultation with the local education authority.

(5) No scheme shall be approved by the Minister under this section unless it is submitted to him within six months after the commencement of this Act :

Provided that if any scheme so submitted is not approved by the Minister, he may authorise the local education authority to submit to him a fresh scheme within such period as he may direct, and may approve any fresh scheme submitted by that authority within that period.

**PART II.
—cont.**

Administra-
tion by local
education
authorities of
unemployment
benefit and
national
assistance.

11.—(1) Any scheme approved under the last foregoing section shall provide, in addition to the matters specified in that section, for the performance by the local education authority of such functions as may be prescribed by the scheme in connection with—

- (a) the administration of unemployment benefit claimed under the National Insurance Act, 1946, by persons under the age of eighteen years ;
- (b) the grant of assistance under the National Assistance Act, 1948, to persons under that age.

(2) There shall in each year be paid out of the National Insurance Fund to every local education authority performing such functions as are mentioned in paragraph (a) of the last foregoing subsection, sums equal to the aggregate amount from time to time paid by that authority in unemployment benefit under the National Insurance Act, 1946.

(3) The National Assistance Board shall in each year pay to every local education authority performing such functions as are mentioned in paragraph (b) of subsection (1) of this section, sums equal to the aggregate amount of the expenses from time to time incurred by that authority in giving assistance under the National Assistance Act, 1948, not being expenses in respect of which payments may be made by the Minister under subsection (3) of section ten of this Act.

11 & 12 Geo. 6.
c. 29.

Amendment
and
revocation
of schemes
under s. 10.

12.—(1) A scheme approved by the Minister under section ten of this Act may be amended by a subsequent scheme so approved, and subsection (5) of that section shall not apply to any such amending scheme.

(2) If it appears to the Minister that any such scheme as aforesaid should be amended, he may after consultation with the local education authority give directions to the local education authority requiring them to submit for his approval a scheme amending the first mentioned scheme in respect of such matters as may be specified in the directions ; and if any such directions are not complied with within such time as may be specified therein, the Minister may, after consultation with the Council, by order revoke the scheme.

(3) A scheme approved by the Minister under section ten of this Act may, if application is made in that behalf by the local education authority, be revoked by order made by the Minister as from such date (not being earlier than six months from the date on which the application is made) as may be specified in the order.

(4) If it appears to the Minister that all or any of the functions of the local education authority under any such scheme as aforesaid have not been or are not being adequately performed,

he may after consultation with the local education authority give to that authority such directions for remedying the default as he considers appropriate ; and if any such directions are not complied with to the satisfaction of the Minister, he may, after consultation with the Council, by order revoke the scheme as from such date as may be specified in the order.

PART II.
—cont.

(5) Without prejudice to the foregoing provisions of this section, if it appears to the Minister after consultation with a local education authority on whose application a scheme has been approved under section ten of this Act that the said authority have not taken, within the period of six months from the date on which that scheme was so approved, or such longer period as may be allowed by the Minister in any particular case, such steps as are necessary for putting the scheme into effective operation, he shall by order revoke the scheme.

13.—(1) The Minister may make regulations for requiring Notification of the proprietors of schools to furnish to the Minister in such particulars manner as may be prescribed by the regulations such particulars as may be so prescribed with respect to pupils leaving school or who, while attending school, attain such age as may be prescribed by the regulations.

(2) The particulars prescribed by any such regulations for the purposes of the last foregoing subsection shall be such particulars relating to the health, ability, educational attainments and aptitudes of the persons to whom they relate as appear to the Minister to be required for enabling adequate advice and assistance to be given to those persons in accordance with the provisions of this Act.

(3) Any regulations made under this section shall make provision for restricting the disclosure of any particulars furnished thereunder, for prescribing the conditions under which records of any such particulars shall be maintained and the purposes for which they may be used and for requiring such records to be destroyed after such period as may be prescribed by the regulations :

Provided that any person being a parent or the guardian of a person of whom particulars have been so furnished shall be entitled, on application to the officer having the custody thereof, to examine those particulars in his presence, but shall not be entitled to receive or take copies thereof.

(4) If any person contravenes or fails to comply with any requirement imposed on him by regulations made under this section, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding ten pounds.

PART II.
—cont.

(5) In relation to any area in which a scheme under section ten of this Act is for the time being in force, subsection (1) of this section shall have effect as if for the second reference to the Minister there were substituted a reference to the local education authority, and as if the references to schools did not include any school maintained by that authority :

Provided that subsection (3) of this section shall apply to any particulars kept by the local education authority in accordance with the scheme with respect to pupils of any school so maintained, as if those particulars had been furnished in pursuance of regulations made under the said subsection (1).

PART III.

SUPPLEMENTAL.

Expenses.

14.—(1) Subject to the provisions of this Act with respect to payments to be made out of the National Insurance Fund or by the National Assistance Board, there shall be paid out of moneys provided by Parliament, to such amount as may be sanctioned by the Treasury,—

- (a) any expenditure of the Minister or the Minister of Education or the Secretary of State under this Act ;
- (b) such expenses or allowances payable to the members of the Council, of the Advisory Committees for Scotland and Wales, of any other committee appointed by the Minister under this Act, or of any committee or sub-committee thereof, as the Minister may with the consent of the Treasury determine.

(2) Any sums paid out of the National Insurance Fund in respect of expenditure of the Minister under this Act shall be paid as an appropriation in aid of moneys provided by Parliament for that expenditure.

Supplementary provisions as to National Youth Employment Council, etc.

15.—(1) His Majesty may by Order in Council amend any of the provisions of Part I of the First Schedule to this Act relating to the number or qualification of the persons to be appointed as members of the Council or of the Advisory Committee for Scotland or Wales.

(2) Any such Order in Council may be varied or revoked by a subsequent Order in Council.

(3) A draft of any Order in Council under this section shall be laid before Parliament, and the draft shall not be submitted to His Majesty unless each House of Parliament presents an Address to His Majesty praying that the Order be made.

Provisions as to offences.

16. Proceedings for any offence under this Act shall not be instituted except by or with the consent of the Minister.

17. Any power of the Minister or the Minister of National Insurance to make regulations under this Act shall be exercisable by statutory instrument, and every such instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

18.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

Interpretation.

“compulsory school age” has the meaning assigned to it by section thirty-five of the Education Act, 1944; 7 & 8 Geo. 6. c. 31.

“industry” means any class or classes of establishments or undertakings or of branches or departments of establishments or undertakings, or any class or classes of such establishments, undertakings, branches or departments in any area, which the Minister may determine to be an industry for the purposes of this Act;

“local authority” means the council of a county, county borough or county district, the common council of the City of London and the council of any metropolitan borough;

“local education authority” means a local education authority as defined by section one hundred and fourteen of the Education Act, 1944;

“proprietor” in relation to a school maintained by a local education authority means that authority, and in relation to any other school means the person or body of persons responsible for the management of the school;

“school” means a school as defined by section one hundred and fourteen of the Education Act, 1944;

“training course” includes a course of instruction or course of occupation;

“voluntary association” includes any company which is required by its constitution to apply its profits, if any, or other income in promoting its objects and prohibited thereby from paying any dividend to its members.

(2) Any reference in this Act to any other enactment shall, unless the context otherwise requires, be construed as a reference to that enactment as amended by or under any other enactment.

19.—(1) This Act shall apply to Scotland subject to the modifications specified in this section.

Application
to Scotland.

PART III.
—cont.

(2) The following expressions, unless the context otherwise requires, shall have the meanings respectively assigned to them⁴ that is to say—

9 & 10 Geo. 6.
c. 72.

“ compulsory school age ” has the meaning assigned to the expression “ school age ” by section thirty-two of the Education (Scotland) Act, 1946 ;

“ local authority ” means a county or town council ;

“ local education authority ” has the meaning assigned to the expression “ education authority ” by section one hundred and forty-three of the Education (Scotland) Act, 1946 ;

“ proprietor ” in relation to a school under the management of an education authority means that authority, and in relation to any other school means the person or body of persons responsible for the management of the school ;

“ school ” has the meaning assigned to that expression by section one hundred and forty-three of the Education (Scotland) Act, 1946.

(3) Any reference to the recovery of a sum summarily as a civil debt shall have effect as if the word “ summarily ” were omitted.

10 & 11 Geo. 6.
c. 43.

(4) Nothing in the provisions of Part V of the Local Government (Scotland) Act, 1947, with regard to the constitution of sub-committees of local authorities shall apply to a Youth Employment Committee.

(5) Section sixteen of this Act shall not apply.

Provisions as
to Northern
Ireland.
10 & 11 Geo. 5.
c. 67.

20.—(1) No limitation on the powers of the Parliament of Northern Ireland imposed by the Government of Ireland Act, 1920, shall preclude that Parliament from making laws for purposes similar to any of the purposes of this Act.

(2) There shall in respect of each year be charged on and issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof to the Government of Northern Ireland such amount as may be agreed between the Treasury and the Ministry of Finance for Northern Ireland, or as in default of agreement may be determined by the Joint Exchequer Board, to represent the amount of the expenses incurred in that year by that Government under any laws made by the Parliament of Northern Ireland for such purposes as aforesaid in so far as any such laws could not have been made by the Parliament of Northern Ireland apart from the last preceding subsection.

Repeals.

21.—(1) Subject to the provisions of this section, the enactments specified in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

PART III.

—cont.

9 Edw. 7.

c. 7.

(2) Any regulations made under the Labour Exchanges Act, 1909, and any rules or other instruments having effect by virtue of such regulations, shall, if in force immediately before the commencement of this Act, continue in force and have effect as if the regulations had been made under the corresponding provisions of this Act, and may be amended or revoked accordingly.

25 & 26 Geo. 5.

c. 8.

(3) Any scheme in force under section eighty-one of the Unemployment Insurance Act, 1935, immediately before the commencement of this Act shall continue in force until the expiration of six months from the commencement of this Act, and if within that period a scheme under section ten of this Act has been submitted to the Minister by the local education authority, shall continue in force for such further period as the Minister may direct; and while any such scheme is in force, the enactments repealed by this section shall have effect in relation thereto as if this section had not been enacted.

(4) Notwithstanding the repeal by this section of section one hundred and thirty-five of the Education (Scotland) Act, 1946, any agency which, immediately before the commencement of this Act, is maintained by an education authority under that section may be maintained thereunder until the expiration of six months from the commencement of this Act, and if within that period a scheme under section ten of this Act has been submitted to the Minister by that authority, may be so maintained for such further period as the Minister may direct.

(5) Nothing in this section shall affect the validity of any regulations made, whether before or after the commencement of this Act, under paragraph (g) of subsection (1) of section sixty-nine of the National Insurance Act, 1946, in relation to any enactment repealed by that Act.

22.—(1) This Act may be cited as the Employment and Training Act, 1948. Short title
and extent.

(2) This Act, except section twenty thereof, shall not extend to Northern Ireland.

SCHEDULES.

Section 8.

FIRST SCHEDULE.

NATIONAL YOUTH EMPLOYMENT COUNCIL AND ADVISORY COMMITTEES FOR SCOTLAND AND WALES.

PART I.

CONSTITUTION OF COUNCIL AND COMMITTEES.

1. The members of the Council shall be appointed by the Minister and shall be not more than thirty-six in number, consisting of—
 - (a) a chairman and not more than six other persons (including the chairmen of the Advisory Committees for Scotland and Wales) appointed as being independent persons ;
 - (b) one person nominated by each of the following bodies, that is to say :—
 - The County Councils Association,
 - The Association of Education Committees,
 - The Association of Municipal Corporations,
 - The London County Council,
 - The Association of County Councils in Scotland,
 - The Association of Councils of Counties of Cities in Scotland, and
 - The Welsh Federation of Education Committees ;
 - (c) three persons appointed as representing teachers in England, one as representing teachers in Scotland, and one as representing teachers in Wales ;
 - (d) four persons appointed as representing employers in England, two as representing employers in Scotland, and one as representing employers in Wales ;
 - (e) four persons appointed as representing workmen in England, two as representing workmen in Scotland, and one as representing workmen in Wales ;
 - (f) two persons appointed as representing Youth Employment Committees appointed by the Minister in England, and one as representing Youth Employment Committees so appointed in Scotland.
2. Before appointing any of the persons specified in sub-paragraphs (c) to (e) of the foregoing paragraph the Minister shall consult with such organisations as may appear to him for that purpose to represent the classes of persons referred to in those sub-paragraphs respectively.
3. The members of the Advisory Committee for Scotland shall be appointed by the Minister, and shall be nineteen in number, consisting of—
 - (a) a chairman and two other persons appointed as being independent persons ;
 - (b) the members of the Council nominated by the Association of County Councils in Scotland and the Association of Councils of Counties of Cities in Scotland and two other persons nominated by those Associations ;

- (c) the member of the Council appointed as representing teachers in Scotland and one other person appointed as representing such teachers ;
 - (d) the members of the Council appointed as representing employers in Scotland and two other persons appointed as representing such employers ;
 - (e) the members of the Council appointed as representing workmen in Scotland, and two other persons appointed as representing such workmen ;
 - (f) the member of the Council appointed as representing Youth Employment Committees in Scotland, and one other person appointed as representing Youth Employment Committees appointed by the Minister in Scotland.
4. The members of the Advisory Committee for Wales shall be appointed by the Minister and shall be fourteen in number, consisting of—
- (a) a chairman and one other person appointed as being independent persons ;
 - (b) the member of the Council nominated by the Welsh Federation of Education Committees and two other persons nominated by that Federation ;
 - (c) the member of the Council appointed as representing teachers in Wales and one other person appointed as representing teachers in Wales ;
 - (d) the member of the Council appointed as representing employers in Wales, and two other persons appointed as representing employers in Wales ;
 - (e) the member of the Council appointed as representing workmen in Wales, and two other persons appointed as representing such workmen ;
 - (f) one person appointed as representing Youth Employment Committees appointed by the Minister in Wales.
5. Before appointing any of the persons specified in sub-paragraphs (c) to (e) of paragraph 3 or paragraph 4 of this Schedule (other than persons appointed by reason of their being members of the Council) the Minister shall consult with such organisations as may appear to him for that purpose to represent the classes of persons referred to in those sub-paragraphs respectively.

PART II.

SUPPLEMENTARY PROVISIONS.

6. The Minister may make regulations with respect to the appointment, tenure of office and vacation of office of members of the Council and of the Advisory Committees for Scotland and Wales.

7. The Minister may appoint a Secretary to the Council and to each of the said Advisory Committees.

8. The Council may appoint such committees, and the said Advisory Committees may appoint such sub-committees, as they think fit, to consider and report upon questions referred to them by the Council or the Advisory Committees, as the case may be, and any such committee or sub-committee may include persons who are not members of the Council or of the Advisory Committees, as the case may be.

1ST SCH.
—cont.

9. The Council and the said Advisory Committees shall have power to regulate their own procedure.

10. The proceedings of the Council or of any such Advisory Committee shall not be invalidated by any vacancy in the membership of the Council or committee or by any defect in the appointment or qualification of any member thereof.

Section 21.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
9 Edw. 7. c. 7.	The Labour Exchanges Act, 1909.	The whole Act.
6 & 7 Geo. 5. c. 68.	The New Ministries and Secretaries Act, 1916.	In the Schedule, the words "Labour Exchanges Act, 1909".
25 & 26 Geo. 5. c. 8.	The Unemployment Insurance Act, 1935.	The whole Act except sections seventy-six and seventy-eight and, so far as they relate to those sections, sections sixty-one, seventy-nine, eighty, eighty-three, one hundred and four and one hundred and five, and in section one hundred and thirteen the definitions of "authorised course" and "education authority".
2 & 3 Geo. 6. c. 29.	The Unemployment Insurance Act, 1939.	The whole Act.
9 & 10 Geo. 6. c. 67.	The National Insurance Act, 1946.	In section sixty-eight, subsection (2). Part II of the Eleventh Schedule and the Twelfth Schedule.
9 & 10 Geo. 6. c. 72.	The Education (Scotland) Act, 1946.	Section one hundred and thirty-five.

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